

# SETTLEMENT AGREEMENT

Full and Final Settlement of All Claims and Proceedings

## PARTIES TO THIS AGREEMENT

### BETWEEN:

**EthicHawks Forensic Governance & Compliance Consultancy**, represented by its Founder, Sr Wilbur William Matthee RN, BTech General Nursing, PGDip Health Services Management (NQF 8), with address at 15 Bellevue Street, Voorbrug, Cape Town, 7001 ("**the Claimant**")

### AND:

**AfroCentric Investment Corporation Limited** (JSE: ACT) and its subsidiaries including **Medscheme Holdings (RF) (Pty) Ltd**, represented by Deneys Reitz Inc., per Jason Whyte and Frances Barker ("**the Respondent**")

## PREAMBLE

The parties acknowledge the following active proceedings:

| Forum                   | Case Reference      |
|-------------------------|---------------------|
| Western Cape High Court | Case No 2026-066952 |
| Western Cape High Court | Case No 2026-086906 |
| Labour Court            | Case No 2026-083299 |
| Labour Court            | Case No 2026-077546 |
| SAPS                    | CAS 1954/3/2026     |
| B-BBEE Commission       | Case 5/02/2026      |

The parties wish to resolve all disputes between them privately, finally, and comprehensively on the terms set out herein, without any admission of liability by either party.

## 1. NATURE OF THIS AGREEMENT

**1.1** This agreement is marked Without Prejudice and Save as to Costs and constitutes a full and final settlement of all claims, disputes, and proceedings between the parties arising from or related to the employment relationship between the Claimant and the Respondent, the protected disclosure of 9 December 2025, and all subsequent legal, regulatory, and parliamentary proceedings.

**1.2** This agreement is binding upon signature by both parties and comes into immediate effect on the date of the last signature appended hereto.

**1.3** No admission of liability is made by either party by virtue of entering into this agreement.

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## 2. SETTLEMENT PAYMENT

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**2.1** The Respondent agrees to pay to EthicHawks Forensic Governance & Compliance Consultancy the total net sum of R4,700,000 (Four Million Seven Hundred Thousand Rand), free of all deductions, taxes, and withholdings whatsoever, as a forensic governance risk mitigation retainer and professional services settlement, structured as follows:

| Payment              | Amount (Net)      | Due Date                       | Authorisation                                |
|----------------------|-------------------|--------------------------------|----------------------------------------------|
| Humanitarian Advance | R215,000          | 27 June 2026 by 17:00          | CEO or CFO only — no board approval required |
| First Tranche        | R2,242,500        | Within 7 days of signature     | Full board approval                          |
| Final Tranche        | R2,242,500        | Within 7 days of first tranche | Full board approval                          |
| <b>TOTAL NET</b>     | <b>R4,700,000</b> | <b>Within 21 days</b>          | Free of all deductions                       |

**2.2** The R215,000 advance payment forms part of and is deducted from the total quantum of R4,700,000. It requires only CEO or CFO authorisation and shall not be delayed pending full board approval of this agreement.

**2.3** All payments shall be made free of all deductions, taxes, and withholdings whatsoever, into the following account:

|                        |                                                                         |
|------------------------|-------------------------------------------------------------------------|
| <b>Account Name</b>    | EthicHawks Forensic Governance & Compliance Consultancy                 |
| <b>Bank</b>            | Discovery Bank                                                          |
| <b>Account Details</b> | To be confirmed in writing by the Claimant within 24 hours of signature |

**2.4** Interest on Late Payment: Any amount not received by the Claimant on its due date shall attract interest at the prescribed legal rate under the Prescribed Rate of Interest Act 55 of 1975, calculated from the due date to the date of actual payment.

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## 3. WITHDRAWAL OF PROCEEDINGS

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**3.1** Upon receipt of the R215,000 advance payment on 27 June 2026, the Respondent shall immediately and unconditionally withdraw the contempt proceedings initiated on 22 June 2026 under Case No 2026-086906, with no order as to costs.

**3.2** Upon receipt of the final tranche payment, the Claimant shall withdraw all active proceedings against the Respondent across all forums, including Western Cape High Court Cases 2026-066952 and 2026-086906, Labour Court Cases 2026-083299 and 2026-077546, SAPS CAS 1954/3/2026, and B-BBEE Commission Case 5/02/2026.

**3.3** The Claimant shall simultaneously withdraw all regulatory escalations filed with the JSE, FSCA, CIPC, IRBA, SAHRC, and all other regulatory bodies upon receipt of the final tranche.

**3.4** The parliamentary submissions made under Section 55(2) of the Constitution shall be formally withdrawn by written notice to the relevant Portfolio Committees upon receipt of the final tranche, with a statement confirming that the matter has been privately resolved.

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## **4. UI-19 CORRECTION**

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**4.1** The Respondent shall within 7 days of signature correct the UI-19 form submitted to the Department of Employment and Labour, amending the classification from voluntary resignation to constructive dismissal.

**4.2** Written confirmation of this correction shall be provided to the Claimant and copied to the Department of Employment and Labour within the same 7-day period.

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## **5. CONFIDENTIALITY**

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**5.1** The terms of this agreement shall remain strictly confidential between the parties, their legal representatives, and their respective financial and tax advisors.

**5.2** Neither party shall disclose the terms of this agreement to any third party without the prior written consent of the other party, except as required by law or by order of court.

**5.3** The existence of a settlement may be acknowledged publicly in the following terms only: "The matter between EthicHawks Forensic Governance & Compliance Consultancy and AfroCentric Investment Corporation Limited has been resolved privately and finally."

**5.4** Any breach of this confidentiality clause shall entitle the non-breaching party to approach a court of competent jurisdiction for urgent relief without further notice.

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## **6. NON-DISPARAGEMENT**

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**6.1** Neither party shall make any disparaging, defamatory, or negative statement regarding the other party, their officers, employees, or representatives, in any public or private forum following signature of this agreement.

**6.2** This clause applies specifically to social media, public statements, regulatory submissions, and media communications.

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## **7. FULL AND FINAL SETTLEMENT**

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**7.1** Upon receipt of the final tranche payment, this agreement constitutes a full and final settlement of all claims, disputes, and causes of action between the parties, whether known or unknown, arising from or related to the employment relationship, the protected disclosure, the court proceedings, and all regulatory escalations.

**7.2** Neither party shall institute any further proceedings against the other arising from or related to the matters settled herein.

**7.3** The Claimant expressly reserves the right to reinstate all proceedings and regulatory escalations in the event of any default on the payment obligations set out in clause 2. In such event, the full actuarial quantum of R7,307,642.72 shall be the operative damages figure and the settlement quantum of R4,700,000 shall no longer apply.

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## 8. BREACH

**8.1** In the event of any breach of this agreement by the Respondent, including but not limited to failure to make any payment on its due date, failure to withdraw contempt proceedings, or failure to correct the UI-19 classification, the Claimant shall be entitled to:

- (a) Reinstate all withdrawn proceedings immediately and without further notice;
- (b) Proceed with parliamentary transmission of the full Consolidated Forensic Evidence Portfolio immediately and without further notice; and
- (c) Claim the full actuarial quantum of R7,307,642.72 as the operative damages figure, with the R4,700,000 settlement figure no longer applying.

**8.2** The Respondent waives any right to object to the reinstatement of proceedings or parliamentary transmission in the event of breach.

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## 9. AUTHORITY

**10.1** Each party warrants that the signatory to this agreement has full authority to bind that party to its terms.

**10.2** The Respondent's signatory warrants that they have obtained all necessary board and legal approvals to enter into this agreement, save for the R215,000 advance payment which requires only CEO or CFO authorisation as set out in clause 2.2.

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## 10. DEADLINE FOR SIGNATURE AND RESPONSE

**11.1** This agreement must be signed by the Respondent and returned to the Claimant by no later than 12:00 on Friday, 27 June 2026.

**11.2** In the absence of a signed agreement by that deadline, this offer of settlement is automatically withdrawn and parliamentary transmission will proceed without further notice.

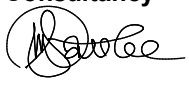
**11.3** The R215,000 humanitarian advance must be received in the designated Discovery Bank account by no later than 17:00 on 27 June 2026, simultaneously with or immediately following the return of the signed agreement.

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## SIGNATURES

SIGNED AT CAPE TOWN ON THIS 23rd DAY OF JUNE 2026

**For and on behalf of:**  
**EthicHawks Forensic Governance & Compliance Consultancy**

Signed:   
\_\_\_\_\_

**Sr Wilbur William Matthee**  
Founder — EthicHawks

**For and on behalf of:**  
**AfroCentric Investment Corporation Limited & Medscheme Holdings (RF) (Pty) Ltd**

Signed: \_\_\_\_\_

Name: \_\_\_\_\_  
Capacity: \_\_\_\_\_

Date: \_\_\_\_\_  
\_\_\_\_\_

Date: \_\_\_\_\_

**Witness for Claimant:**

Signed: \_\_\_\_\_  
Name: \_\_\_\_\_

\_\_\_\_\_  
Date: \_\_\_\_\_

**Witness for Respondent:**

Signed: \_\_\_\_\_  
Name: \_\_\_\_\_

\_\_\_\_\_  
Date: \_\_\_\_\_

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*This agreement is electronically authenticated under Section 13 of the Electronic Communications and Transactions Act 25 of 2002.*

*SHA-256 Cryptographic Integrity Protocol Applied | EthicHawks Forensic Governance & Compliance Consultancy | June 2026*